

Incident Report: Excessive Force; GSP Stop May 5, 2020
CN#24CR13237

To:
Honourable Bart Altman
Judge, State Court of Glynn County

Complainant:
Name: Austin Tyler Underwood
Address: 362 Strickland Road, Brunswick, GA 31523
Date of Incident: May 5, 2020
Time: Approximately 5:00–6:00 PM
Location: Jekyll Island exit, Glynn County, Georgia
Vehicle: Kia Forte

I. NARRATIVE

On May 5, 2020, after completing my shift at Marriott Bonvoy on Jekyll Island, I was unlawfully stopped and

II. ALLEGED VIOLATIONS

1. Fourth Amendment – Unlawful Arrest and Excessive Force:
 - No probable cause existed for the stop or arrest. The force used was objectively unreasonable (Graham
2. Fifth and Sixth Amendments – Failure to Read Miranda Rights:
 - I was not informed of my constitutional rights prior to interrogation during detention.
3. Obstruction of Evidence:
 - Officer's recording device was covered, indicating tampering (Silvestri v. General Motors Corp., 2001).

III. SUPPORTING TESTIMONY

- Michael and Freda Underwood: Will testify regarding the vehicle's retrieval and my condition.
- Co-workers at Marriott Bonvoy: Can confirm my shift and that I was heading home without incident.

IV. PRAYER FOR RELIEF

I respectfully request:

1. Thorough investigation into the conduct of the involved officer.
2. Release of all body camera and dashcam footage.
3. Appropriate judicial action to address constitutional violations.

Respectfully submitted,
Austin Tyler Underwood